

Bid Document/ बिड दस्तावेज़

Bid Details/बिड विवरण	
Bid End Date/Time/बिड बंद होने की तारीख/समय	03-05-2025 17:00:00
Bid Opening Date/Time/बिड खुलने की तारीख/समय	03-05-2025 17:30:00
Bid Offer Validity (From End Date)/बिड पेशकश वैधता (बंद होने की तारीख से)	180 (Days)
Ministry/State Name/मंत्रालय/राज्य का नाम	Uttar Pradesh
Department Name/विभाग का नाम	Medical Health And Family Welfare Department Uttar Pradesh
Organisation Name/संगठन का नाम	N/a
Office Name/कार्यालय का नाम	Lucknow Hq
क्रेता ईमेल/Buyer Email	buycon2.upmscl.lko@gembuyer.in
Total Quantity/कुल मात्रा	31
Item Category/मद केटेगरी	1.5 T MRI Machine (Q2)
Minimum Average Annual Turnover of the bidder (For 3 Years)/बिडर का न्यूनतम औसत वार्षिक टर्नओवर (3 वर्षों का)	11900 Lakh (s)
Years of Past Experience Required for same/similar service/उन्हीं/समान सेवाओं के लिए अपेक्षित विगत अनुभव के वर्ष	3 Year (s)
MSE Exemption for Years of Experience and Turnover/ अनुभव के वर्षों से एमएसई छूट	No
Startup Exemption for Years of Experience and Turnover/ अनुभव के वर्षों से स्टार्टअप छूट	No
Document required from seller/विक्रेता से मांगे गए दस्तावेज़	Experience Criteria,Past Performance,Bidder Turnover,Certificate (Requested in ATC),OEM Authorization Certificate,Compliance of BoQ specification and supporting document *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
Do you want to show documents uploaded by bidders to all bidders participated in bid?/	No

Bid Details/बिड विवरण	
Past Performance/विगत प्रदर्शन	10 %
Bid to RA enabled/बिड से रिवर्स नीलामी सक्रिय किया	Yes
RA Qualification Rule	H1-Highest Priced Bid Elimination
Comprehensive Maintenance Charges Required	Yes
Type of Bid/बिड का प्रकार	Two Packet Bid
Time allowed for Technical Clarifications during technical evaluation/तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय	2 Days
Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Estimated Bid Value/अनुमानित बिड मूल्य	3966891319
Evaluation Method/मूल्यांकन पद्धति	Total value wise evaluation
Arbitration Clause	No
Mediation Clause	No

EMD Detail/ईएमडी विवरण

Advisory Bank/एडवाइजरी बैंक	State Bank of India
EMD Amount/ईएमडी राशि	79400000

ePBG Detail/ईपीबीजी विवरण

Advisory Bank/एडवाइजरी बैंक	State Bank of India
ePBG Percentage(%) / ईपीबीजी प्रतिशत (%)	5.00
Duration of ePBG required (Months) / ईपीबीजी की अपेक्षित अवधि (महीने).	62

(a). EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy./जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित केटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज प्रस्तुत करने हैं। एमएसई केटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।

(b). EMD & Performance security should be in favour of Beneficiary, wherever it is applicable./ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए।

Beneficiary/लाभार्थी :

Managing Director

Lucknow
(Mr Jagdish)

MSE Purchase Preference/एमएसई खरीद वरीयता

MSE Purchase Preference/एमएसई खरीद वरीयता	No
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MII Purchase Preference/एमआईआई खरीद वरीयता

MII Purchase Preference/एमआईआई खरीद वरीयता	No
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1. The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated above in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3-year-old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

2. Experience Criteria: In respect of the filter applied for experience criteria, the Bidder or its OEM {themselves or through reseller(s)} should have regularly, manufactured and supplied same or similar Category Products to any Central / State Govt Organization / PSU for number of Financial years as indicated above in the bid document before the bid opening date. Copies of relevant contracts to be submitted along with bid in support of having supplied some quantity during each of the Financial year. In case of bunch bids, the category of primary product having highest value should meet this criterion.

3. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc. This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.

4. Past Performance: The Bidder or its OEM {themselves or through re-seller(s)} should have supplied same or similar Category Products for 10% of bid quantity, in at least one of the last three Financial years before the bid opening date to any Central / State Govt Organization / PSU. Copies of relevant contracts (proving supply of cumulative order quantity in any one financial year) to be submitted along with bid in support of quantity supplied in the relevant Financial year. In case of bunch bids, the category related to primary product having highest bid value should meet this criterion.

5. Reverse Auction would be conducted amongst all the technically qualified bidders except the Highest quoting bidder. The technically qualified Highest Quoting bidder will not be allowed to participate in RA. However, H-1 will also be allowed to participate in RA in following cases:

- If number of technically qualified bidders are only 2 or 3.
- If Buyer has chosen to split the bid amongst N sellers, and H1 bid is coming within N.
- In case Primary product of only one OEM is left in contention for participation in RA on elimination of H-1.
- If L-1 is non-MSE and H-1 is eligible MSE and H-1 price is coming within price band of 15% of Non-MSE L-1
- If L-1 is non-MII and H-1 is eligible MII and H-1 price is coming within price band of 20% of Non-MII L-1

Pre Bid Detail(s)

Pre-Bid Date and Time	Pre-Bid Venue
21-04-2025 16:00:00	Ground Floor Meeting Hall, Lal Bahadur Shastri Bhawan (Annexi Bhawan), Lucknow

1.5 T MRI Machine (31 pieces)

Technical Specifications/तकनीकी विशिष्टियाँ

* जेम केटेगरी विशिष्टि के अनुसार / As per GeM Category Specification

Specification	Specification Name/विशिष्टि का नाम	Bid Requirement/बिड के लिए आवश्यक (Allowed Values)/अनुमत मूल्य
MAGNET	Magnet Configuration	Wide Bore
GANTRY	Bore diameter at isocenter (cm)	70
	Maximum bore length with cover (cm)	150-159, 160-169, 170-179, 180-189, 190 and above
SHIM SYSTEM	Type of shimming	Active and Passive
PATIENT TABLE	Safe patient transfer cart provided	Yes
	Table Type	Dockable, Fixed
	Table movements	Vertical and Horizontal
	Lateral movement in Table	No, Yes
GRADIENT SYSTEM	Peak Amplitude with each axis independently (mT/m)	? 40
	Standard slew rate, with each axis independently (T/m/sec)	? 200
RF SYSTEM	Minimum RF transmitter and receiver power output (KW)	15
	Minimum Number of independent / quadrature RF receiver channels (Acquisition in single channel and single FOV)	64
	RF system's minimum number of elements that can be connected simultaneously in single FOV and single scan	64, Coil and FOV dependent
COIL SYSTEM	Location of Channel connectivity for Better SNR	Magnet
	Parallel imaging -uses redundant information acquired by multiple coil elements to significantly accelerate image acquisition The overall image time can be reduced by a factor of two or more	Yes
	Parallel imaging - Maximum parallel acquisition acceleration factor	? 2, ? 4, ? 6, ? 8, ? 10, ? 16, Varies by coil
	Element selection type	Automatic

Specification	Specification Name/विशिष्टि का नाम	Bid Requirement/बिड के लिए आवश्यक (Allowed Values)/अनुमत मूल्य
	Head and Neck Coil - Number of elements (minimum)	20, 32 Or higher
	Head and Neck coil, Detachable face - a detachable front section is Intended to help reduce patient anxiety	Yes
	Head and neck Coil, Patient mirror(s) - include a small mirror that enables the patient to see outside the bore, which can reduce patient anxiety	Yes, No
	Spine Coil - Number of elements (minimum)	12, 16, 18, 24, 32, 40 Or higher
	Anterior Body coil	Yes
	Dedicated Anterior body coil with Spine Coil (body imaging at Max FOV) (Single or combination of coils) - Maximum elements used simultaneously	1, 2, 3, 9, 32, 6, 12, 18, 8 Or higher
	Breast Coil	Yes, No
	Breast Coil - Number of elements (minimum)	4, 7, 8, 16, 18, 0 Or higher
	Dedicated Breast Biopsy Coil	Yes, No
	Spine (CTL)	Yes
	Head + Neck, Neuro-Vasculature	Yes
	Whole CNS (Head + Whole Spine)	Yes
	Chest, Heart	Yes, No
	Abdomen, Pelvis	Yes
	Whole Abdomen	Yes
	Peripheral Vasculature	Yes
	Prostate, Colon, Rectum, Cervix	Yes
	Dedicated Knee coil	Yes
	Knee coil - number of elements (minimum)	8, 15, 0 Or higher
	Dedicated Ankle coil	Yes, No

Specification	Specification Name/विशिष्ट का नाम	Bid Requirement/बिड के लिए आवश्यक (Allowed Values)/अनुमत मूल्य
	Ankle coil - number of elements (minimum)	0, 8, 16 Or higher
	Dedicated Shoulder coil	Yes
	Shoulder coil - number of elements (minimum)	16 Or higher
	Dedicated Wrist coil	Yes, No
	Wrist coil - number of elements (minimum)	0, 8, 16 Or higher
	Multi-Purpose Coils	Yes
	Temporo-Mandibular Joints	Yes
	Whole Body	Yes
	Flex coils small and large at least 4 channel	Yes
SCANNING TECHNIQUES	Standard pulse sequences (Series of RF and gradient pulses used to generate MR signals for image acquisition)	Yes
	Image acquisition - Patient movement compensated, head and body	Yes
	Isotropic 3-D (T1) and Isotropic 3-D fast spin echo (T2)	Yes
	Fat suppressed Single breath-hold 3-D body imaging using parallel acquisition of gradient echo pulse sequences	Yes
	Single-point Dixon acquisition - this technique generates different image contrasts such as water-only, fat-only, in-phase, and out-of-phase	Yes
	Gradient Echo - An imaging sequence in which echo is created by switching a pair of dephasing and rephasing gradients such as spoiled, rewind and Steady state free precession techniques	Yes
	Spectroscopy for Breast	Yes, No
	Spectroscopy for Prostate	Yes, No
	Multi parametric study for prostate	Yes

Specification	Specification Name/विशिष्ट का नाम	Bid Requirement/बिड के लिए आवश्यक (Allowed Values)/अनुमत मूल्य
	Bilateral Breast imaging with fat suppression with time intensity graph	Yes, No
	Non-contrast angiographic imaging technique (time of flight, phase contrast and SSFP) is used to visualize flow within vessels	Yes
WORKSTATION QUANTITATIVE IMAGE ANALYSIS TOOLS	fMRI tools	Yes, No
	Diffusion Imaging tools	Yes
	Diffusion tensor imaging tools	Yes, No
	Cardiac imaging tools	Yes, No
WORKSTATION SPECIFICATIONS	Image post processing workstation model	Client Server
	Number of nodes to be provided	2
	Number of Concurrent Licenses to be provided	2
	All necessary compatible and up gradable software including post processing software for all offered application including DTI and other associated post processing like MIP, MPR, and surface reconstruction to be provided	Yes
	Software's for analyzing DWI, Spectroscopy, perfusion, CSF flow data, T1 relaxation, T2 relaxation, T2*relaxation to be provided	Yes
	System should be capable of having number of DTI directions (minimum)	12, 32, 128, 256 Or higher
	Cardiac package for morphology and cardiac angiography	Yes, No
	Output in the form of jpeg, avi /equivalent formats	Yes
	Display of cardiac cine images in movie mode with rapid avi creation in workstation	Yes, No
SERVER HARDWARE	Minimum Processing Power of Server	20,000 concurrent slices

Specification	Specification Name/विशिष्टि का नाम	Bid Requirement/बिड के लिए आवश्यक (Allowed Values)/अनुमत मूल्य
	Ram Size	? 64 GB
	Monitor Size of Server	? 19 inch
	Monitor Type of Server	LCD/LED/TFT
WORKSTATION HARDWARE	Minimum Ram Size of Workstation	4, 8, 16 Or higher (gigabyte)
	Minimum Storage capacity of Workstation	1000 Or higher (gigabyte)
ACCESSORIES	MRI Compatible auto pressure injector	Yes, No
	MR Compatible basic ventillator	Yes
	MR Compatible Monitor (ECG, SpO2, NIBP, RR and HR/PR) with slave display in control room	Yes
	MR Compatible medical O2 gas pipeline with cylinder and standard accessories	Yes
	MRI compatible trolley and wheel chair to transfer patient in and out of gantry room	Yes
	Dry laser camera with minimum resolution of 500 DPI and with three trays to accommodate three different size of films	Yes
	Online UPS for backup of at least 30 minutes for entire system	Yes
CERTIFICATIONS AND REPORTS	Product certification	EU-CE, US- FDA, CDSCO
PRE-INSTALLATION SITE REQUIREMENTS	Power Requirements(KVA)	30, 40, 60, 90, 120, 160 Or lower
	Preparation of MRI Room, console Room , Technical room, patient preparation room, one wash room etc to be done by the seller in the area of approx 900 sq feet	Yes
	Vinyl flooring, wooden panels and good quality false ceiling in MRI room to be done by the seller	Yes

Specification	Specification Name/विशिष्टि का नाम	Bid Requirement/बिड के लिए आवश्यक (Allowed Values)/अनुमत मूल्य
	Tile based false ceiling and floor tiling and wall tiling till false ceiling in rooms other than MRI room to be done by the seller	Yes
	Necessary modification civil work, electrical , plumbing, furnishing, air conditioning in the given area to be done by the Seller	Yes
	Doors other than main MRI room to be of good quality Aluminium doors and to be done by the seller	Yes
	RF shielding for doors , wall, glass viewer etc to be done by the seller	Yes
WARRANTY	Warranty in Years (Option of comprehensive warranty is available through bidding only, which if opted will supersede normal warranty in the catalogue)	5 Or higher

Comprehensive Maintenance	
Warranty of required product	5 Year
Comprehensive Maintenance Duration (Post Warranty)	5 Year

*Warranty displayed under the AMC/CMC Details section will supersede the warranty displayed under the catalog specification

Additional Specification Parameters - 1.5 T MRI Machine (31 pieces)

Specification Parameter Name	Bid Requirement (Allowed Values)
Additional Terms & Conditions (ATC)-1	1- Gradient Amplifier should be more than 1 Mega Watt 2- Delivery Days:- 120-180 days, phased manner 3- DG Set of suitable capacity to provide the backup to the entire MRI complex. 4-Vender has to supply and install Ferromagnetic door (zone 3), to act as separation between magnetic & non magnetic area and 2 Nos. hand held metal detector should also be supply with the each machine.

Specification Parameter Name	Bid Requirement (Allowed Values)
Additional Terms & Conditions (ATC)-2	Furniture's: 1. Three setter Chairs: 07 Nos. (20 People capacity) 2. Revolving chairs height adjustable, medium back with hand-rest for the console room and reception area - 02 Nos. 3. Patient trolley with rubber foam mattress - 1 Nos. 4. LED based exit and fire Signage to be installed as per location in MRI area. 5. Dustbins: 10 Nos. 6. Site fabricated medium size tables 2 nos. of size 1200X 800X750mm.
Additional Terms & Conditions (ATC)-3	MRI Conditional Furniture:- 1-MRI IV Stand 2- MRI Suction Apparatus 3- MRI Fire Extinguisher 4- MRI CO2 cylinder 5- MRI Room Oxygen Monitor 6- MRI Crash Card 7- MRI Compatible Anesthesia Machine- Optional (Bidder has to quote the separate for this item).
Additional technical Parameters-1 (ATC)-4	1-Maximum bore length with cover (cm):-Maximum bore length with cover (cm): 140-149, 150-159, 160-169, 170-179, 180-189, 190 and above 2- Parallel imaging - Maximum parallel acquisition acceleration factor:-? 2,? 4,? 6,? 8 ?10,? 16,varies by coil 3-Spine Coil - Number of elements (minimum):- 24 Or higher 4-Flex coils small and large at least 4 channel:- Yes , (small-1 , Large-1)
Additional technical Parameters-2	5- MRI compatible trolley and wheel chair to transfer patient in and out of gantry room:-Yes (trolley-1, wheel chair-1) 6-Minimum Ram Size of Workstation:-16 Or higher(Gigabyte). 7-Power Requirements(KVA):-120 8- Product certification a. EUCE from notified body/USFDA/BIS b. Product must be CDSCO approved c. ISO 13485(latest edition) 8-Dedicated Anterior body coil with Spine Coil (body imaging at Max FOV) (Single or combination of coils) - Maximum elements used simultaneously-12 or more

* Bidders offering must also comply with the additional specification parameters mentioned above.

Consignees/Reporting Officer/परेषिती/रिपोर्टिंग अधिकारी and/ तथा Quantity/मात्रा

S.No./क्र. सं.	Consignee Reporting/Officer/ परेषिती/रिपोर्टिंग अधिकारी	Address/पता	Quantity/मात्रा	Delivery Days/डिलीवरी के दिन
1	Devbrat Kumar Arya	226002,UPMSCL, SUDA Bhawan, 7/23, Sector-7, Gomti Nagar Extension, Lucknow- 226002	31	180

Special terms and conditions-Version:3 effective from 14-07-2023 for category 1.5 T MRI Machine

1. All Provisions of Drugs and Cosmetics Act, 1940 and Rules made there under as amended till date will always be applicable. This will include all notifications issued by *Central Drugs Standard Control Organisation(CDSCO)*, Ministry of Health & Family Welfare (MoHFW) and Department of Pharmaceuticals (DOP), Ministry of Chemicals & Fertilizers time to time in this regard.
2. The sellers are registered on GeM based on self-declaration of valid Drug License, product certification, test reports etc. However, buyers must check and validate the details at their end for all applicable licenses and certifications e.g., validity and authenticity/genuineness of drug license, product certification, manufacturer certification/licenses, test reports etc.
3. The price offered by the seller shall not, in any case exceed the DPCO controlled price, if any, fixed by the Central/State Government, the Maximum Retail Price (MRP) and the selling price. The seller must reduce the prices if there is any reduction in DPCO ceiling price, if any.
4. **Comprehensive warranty:** Comprehensive warranty shall include preventive maintenance including calibration as per technical/ service /operational manual of the manufacturer, service

charges and spares. During the warranty period commencing from date of the successful completion of warranty period, Service personnel shall visit each consignee site as recommended in the manufacturer's technical/ service /operational manual, at least once in six months. warranty shall not be including the consumables. Further there will be 98% uptime warranty during warranty period on 24 (hrs) X 7 (days) X 365 (days) basis, with penalty, to extend warranty period by double the downtime period.

5. **Service centres:** Details of Service outlets in India to render services for equipment to be furnished to buyer/consignees with complete address, telephone numbers, e mails etc at time of making the supplies. It shall be the responsibility of seller to ensure that authorized service centres are available to cater to the areas where supplies are made within reasonable distance from where the service calls can be handled. Details of toll-free numbers for service call and online registration of service requests also to be provided buyer/consignee at the time of supplies.
6. **Source of supply:** It shall be responsibility of seller to provide Documents regarding source of equipments such as copy of Performa invoice or any other documents to establish that the products supplied are manufactured by OEM indicated and sourced from them.
7. **Packing and Marking:** Medical equipments being very delicate and sensitive packing for the goods should be strong and durable enough to withstand transit including transshipment (if any), rough handling, open storage etc. without any damage, deterioration etc. .The size, weights and volumes of the packing cases, remoteness of the final destination of the goods, availability or otherwise of transport and handling facilities at all points during transit up to final destination,. Quality of packing, the manner of marking within & outside the packages and provision of accompanying documentation shall take into consideration the type of medical equipments being supplied. The accessories shall be suitably labelled and packed. Each of the package shall be marked on three sides with indelible paint of proper quality: indicating contract number and date, brief description of goods including quantity, Packing list reference number, country of origin of goods and any other relevant details.
8. **Spare Parts:** Seller shall provide materials, information etc. pertaining to spare parts manufactured and supplied by the OEM. It shall be ensured that the required spares are available for purchase at least for 10 years from date of supplies. In case due to any reasons the production of the spare parts is discontinued sufficient advance notice should be given to the buyer/consignee before such discontinuation to provide adequate time to purchase the required spare parts etc. Further, OEM and their service centres/dealers shall carry sufficient inventories to assure ex-stock supply of consumables and spares for the equipments so that the same are available.
OEM or reseller shall always accord most favoured client status to the buyer/consignee and shall give the most competitive price for spares and consumables of its machines/equipments supplied.
9. **Installation, Training, Manuals:** Seller shall be responsible to carry out Installation & commissioning, Supervision and Demonstration of the goods. They shall provide required jigs and tools for assembly, minor civil works for the completion of the installation and Training of Consignee's representatives for operating and maintaining the equipment and supplying required number of operation & maintenance manual for the goods. In case the category parameters are specifying any requirements regarding the installations, training and manuals the same shall also be applicable.
10. **Electrical safety checking:** Sellers are required to make sure that they furnish the list of equipments for carrying out routine and preventive maintenance to buyer/consignee .They should make sure to periodically check the electrical safety aspects as per BIS Safety Standards or equivalent .In case they do not have required equipment for such testing should ensure that the equipments checked for electrical safety compliance through labs with facilities for such checking during every preventive maintenance call.
11. **Software:** All software updates should be provided free of cost during warranty period.
12. Any other Terms and Conditions which is not included or at variance with the conditions specified in STC/GTC, may be added by the buyer through Additional Terms and Conditions in the bid to ensure items are procured from authentic/validated source with appropriate and applicable quality. The above terms and conditions are in reverse order of precedence i.e. ATC shall supersede specific STC which shall supersede General Terms and Conditions ("GTC"), whenever there are any conflicting provisions.

Buyer Added Bid Specific Terms and Conditions/क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें

1. Generic

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up

to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original delivery period while exercising the option clause. Bidders must comply with these terms.

2. **Scope of Supply**

Scope of supply (Bid price to include all cost components) : Supply Installation Testing Commissioning of Goods and Training of operators and providing Statutory Clearances required (if any)

3. **Turnover**

Bidder Turn Over Criteria: The minimum average annual financial turnover of the bidder during the last three years, ending on 31st March of the previous financial year, should be as indicated in the bid document. Documentary evidence in the form of certified Audited Balance Sheets of relevant periods or a certificate from the Chartered Accountant / Cost Accountant indicating the turnover details for the relevant period shall be uploaded with the bid. In case the date of constitution / incorporation of the bidder is less than 3 year old, the average turnover in respect of the completed financial years after the date of constitution shall be taken into account for this criteria.

4. **Buyer Added Bid Specific ATC**

Buyer Added text based ATC clauses

1. **In the technical specification against any particular item/function if “Yes, No” both is written, it should be taken as particular item/function is not required.**
2. **In the technical specification against any particular item/function if “?” is prefixed, it should be taken as “≥”.**
3. **Consignee list mentioned in the tender document is tentative, final consignee list will be as decided by Department of Health & Family Welfare, GoUP and may change as per requirement.**
4. **The physical demonstration of the quoted model of the said item will be held details of which will be shared at later stage through email with technically qualified bidders. Bidders are requested to mention their Email ID and contact no. in technical bid for future correspondence.**
5. **Transportation charges or any other charges will not be borne by UPMSCL .It is the responsibility of respective bidders.**

5. **Buyer Added Bid Specific ATC**

Buyer uploaded ATC document [Click here to view the file.](#)

6. **Forms of EMD and PBG**

Bidders can also submit the EMD with Payment online through RTGS / internet banking in Beneficiary name

UP MEDICAL SUPPLIES CORPORATION LIMITED
Account No.
39366886265
IFSC Code
SBIN0012732
Bank Name
STATE BANK OF INDIA

Branch address
Arjunganj Lucknow

Bidder to indicate bid number and name of bidding entity in the transaction details field at the time of on-line transfer. Bidder has to upload scanned copy / proof of the Online Payment Transfer along with bid.

Disclaimer/अस्वीकरण

The additional terms and conditions have been incorporated by the Buyer after approval of the Competent Authority in Buyer Organization, whereby Buyer organization is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any eccentricity / restriction arising in the bidding process due to these ATCs and due to modification of technical specifications and / or terms and conditions governing the bid. If any clause(s) is / are incorporated by the Buyer regarding following, the bid and resultant contracts shall be treated as null and void and such bids may be cancelled by GeM at any stage of bidding process without any notice:-

1. Definition of Class I and Class II suppliers in the bid not in line with the extant Order / Office Memorandum issued by DPIIT in this regard.
2. Seeking EMD submission from bidder(s), including via Additional Terms & Conditions, in contravention to exemption provided to such sellers under GeM GTC.
3. Publishing Custom / BOQ bids for items for which regular GeM categories are available without any Category item bunched with it.
4. Creating BoQ bid for single item.
5. Mentioning specific Brand or Make or Model or Manufacturer or Dealer name.
6. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
7. Floating / creation of work contracts as Custom Bids in Services.
8. Seeking sample with bid or approval of samples during bid evaluation process. (However, in bids for [attached categories](#), trials are allowed as per approved procurement policy of the buyer nodal Ministries)
9. Mandating foreign / international certifications even in case of existence of Indian Standards without specifying equivalent Indian Certification / standards.
10. Seeking experience from specific organization / department / institute only or from foreign / export experience.
11. Creating bid for items from irrelevant categories.
12. Incorporating any clause against the MSME policy and Preference to Make in India Policy.
13. Reference of conditions published on any external site or reference to external documents/clauses.
14. Asking for any Tender fee / Bid Participation fee / Auction fee in case of Bids / Forward Auction, as the case may be.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller within 4 days of bid publication on GeM. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

Additional Clause For Comprehensive Maintenance Charges

- 1.CMC shall include preventive maintenance including calibration as per technical/ service /operational manual of the manufacturer, service charges and spares, after satisfactory completion of Warranty. During the CMC period commencing from date of the successful completion of warranty period, Service personnel shall visit each consignee site as recommended in the manufacturer's technical/ service /operational manual, at least once in six months or as per user requirement. Cost of consumables shall not be included in CMC.Further there will be 98% uptime warranty during CMC period on 24 (hrs) X 7 (days) X 365 (days) basis, with penalty, to extend CMC period by double the downtime period.
- 2.CMC charges to be indicated as percentage of cost of equipment quoted for each year after the warranty period.
- 3.GST shall be included in the CMC Charges quoted.
- 4.Cost of CMC will be added for Ranking/Evaluation purpose with depreciation formula.A 10% discounting rate

per year shall be applied on CMC Charges for price evaluation on Net Present Value.

5.The payment of CMC will be made on quarterly basis after satisfactory completion of said period, duly certified by end user.

6.While creating a bid or RA, buyers shall indicate whether CMC is required against Yes/No" options. If CMC Charges are included, an option for number of years for CMC required after the warranty period shall be available.Under this option up to 10 years can be chosen for CMC charges beyond warranty period.

7.In case the bid has a provision for CMC, the warranty of the product will also be deemed to have been converted into Comprehensive warranty including preventive maintenance and calibration as per technical/ service /operational manual of the manufacturer, service charges and spares, during the Warranty Period also. Sellers are therefore advised to include the cost of Comprehensive Warranty including spares (excluding consumables) also in product Cost.

8.The CMC functionality shall be available in bid only and no direct RA shall be applicable.In case of bid to R/A decrement rules shall be applicable on total price inclusive of CMC charges. Bunching of products shall not be available while creating bids with CMC charges.

8.1.Buyer shall indicate number of years of warranty by selecting different options available in the field depending on warranty parameter applicable in category parameters for the equipment. No. of years of warranty indicated here shall supersede the warranty period indicated elsewhere in bid or product specifications. The Seller while participating in Bid/RA will get fields to indicate CMC charges as percentage depending on number of years of CMC selected by Buyer. The following shall be applicable, if 5 year CMC selected:

CMC charges for 1st year after warranty period- Percentage to be indicated- A1
CMC charges for 2nd year after warranty period- Percentage to be indicated- A2
CMC charges for 3rd year after warranty period - Percentage to be indicated- A3
CMC charges for 4th year after warranty period - Percentage to be indicated- A4
CMC charges for 5th year after warranty period - Percentage to be indicated- A5

Similarly, A6 to A10 are to be indicated for 6th to 10th year of CMC if applicable.

8.2.The calculation of CMC Charges shall take into account the number of years of warranty and duration of CMC as specified while creating bid.

8.3.In the price evaluation, the system shall provide function to calculate the cost of each equipment by formula indicated below includingCMC and then show the inter-se-ranking of the bidders. The following are the variables

(i) Number of years for which CMC required.

(ii) Number of years of product warranty

The formula for calculating total cost including CMC charges shall be as under:

Total Cost for evaluation=

$C + C * \{ (A1/100)/(1.10^n) + (A2/100)/(1.10^{n+1}) + (A3/100)/(1.10^{n+2}) + (A4/100)/(1.10^{n+3}) + (A5/100)/(1.10^{n+4}) \}$ and so on

C - Cost for equipment quoted and n shall be number of years of product warranty specified.

If 2 year warranty specified, n shall be 2 and if 5 year warranty specified, n shall be 5. A1,A2, A3, A4& A5shall depend on how many years CMC selected. For 3 year CMC, only A1,A2 and A3 factors are to be taken into account and A4 and A5 will not be applicable.

8.4.CMC charges offered for each subsequent year should be same or higher than preceding year.

8.5.The CMC charges shall be offered within range of 3 to 10% of cost of equipment.

9.Since CMC charges are to be paid only later for each year during CMC period,applicable performance guarantee amount after placement of contract shall be based on the cost of equipment excluding the cost of CMC Charges.

10.Performance bank guarantee applicable for CMC is to be submitted at start of the CMC and shall be applicable between 2.5% to 10% as specified in bid on total CMC Charges.The PBG submitted after award of contract shall be released only after new PBG for the CMC period is submitted and accepted by buyer/consignee after due verification.Bank guarantee for CMC is to remain valid till completion of CMC period plus one year. The bank guarantee for CMC shall be submitted to buyer directly. In case, seller fails to submit the PBG or does not provide services for the CMC contract after expiry of warranty period then PBG of equipment shall be forfeited.

11.In case of splitting of order quantity, equipment cost and CMC charges offered by L1 bidder shall be matched by higher quoting eligible bidders on one-to-one basis.The equipment cost and CMC charges (year to year) shall be matched individually.

12.The CMC Contract shall be an offline contract to be handled by buyer.The payment of CMC will be made on quarterly basis after satisfactory completion of said period, duly certified by end user and scope of CMC will be as per para 1 above.

13.CMC Charges are inclusive of all the charges for Transportation, Lodging, Boarding, all insurances including third party insurance and all other incidental charges. The same shall include GST. The prices also include cost of spares and damaged parts. Purchaser does not have any liability, whatsoever, over and above the cost of CMC. It also includes for arranging hand tools & tackles, special tools etc. required to carry out the work.

All GeM Sellers / Service Providers are mandated to ensure compliance with all the applicable laws / acts / rules including but not limited to all Labour Laws such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972 etc. Any non-compliance will be treated as breach of contract and Buyer may take suitable actions as per GeM Contract.

[This Bid is also governed by the General Terms and Conditions/ यह बिड सामान्य शर्तों के अंतर्गत भी शासित है](#)

In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws./जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।

---Thank You/धन्यवाद---